

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Hongwei Chen	Team: Team # 8	CCRB Case #: 200800810	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 01/15/2008 6:20 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/15/2009	Precinct: 09
Date/Time CV Reported Wed, 01/16/2008 2:12 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 01/16/2008 2:12 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Keith Gallagher	04733	938517	009 PCT
2. POM Michael Schemmel	08779	942522	009 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Chris Palmeri	18548	922935	009 PCT
2. POM Rene Sola	13606	891031	009 PCT
3. LT Robert Corcoran	00000	903682	009 PCT
4. POF Jessica Torres	01909	939592	009 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Keith Gallagher	Force: PO Keith Gallagher used physical force against § 87(2)(b)	A . Exonerated
B . POM Michael Schemmel	Force: Michael Schemmel used physical force against § 87(2)(b)	B . Exonerated
C . POM Keith Gallagher	Force: PO Keith Gallagher struck § 87(2)(b) with an asp.	C . Unsubstantiated

Synopsis

On January 15, 2008, at approximately 6:20 PM, § 87(2)(b) who is a taxi operator, was engaged in a dispute with his fare, § 87(2)(b) at § 87(2)(b) in Manhattan. § 87(2)(b) called 911 to report that § 87(2)(b) had assaulted her. PO Keith Gallagher and PO Michael Schemmel of the 9th Precinct responded to the scene. PO Gallagher and PO Schemmel grabbed § 87(2)(b) and threw him to the ground (**Allegations A and B**). PO Gallagher then placed § 87(2)(b) in handcuffs and pushed him into the backseat of § 87(2)(b)'s taxi. PO Gallagher then drew his asp and struck § 87(2)(b) in the back (**Allegation C**). The officers then arrested § 87(2)(b).
§ 87(2)(g)

It is recommended that **Allegations A and B** be closed **exonerated**. § 87(2)(g)
§ 87(2)(b) It is thus recommended that **Allegation C** be closed **unsubstantiated**.

Summary of Complaint

§ 87(2)(b)

§ 87(2)(b) is a § 87(2)(b) Hispanic male who is § 87(2)(b) and weighs § 87(2)(b) with black hair. § 87(2)(b) reported his complaint telephonically to the CCRB on January 16, 2008 (encl. 2a-b) on behalf of an individual subsequently identified as § 87(2)(b). § 87(2)(b) is an employee at a § 87(2)(b) called § 87(2)(b). § 87(2)(b) is not related to § 87(2)(b). § 87(2)(b) was interviewed at the CCRB on February 6, 2008 (encl. 2c-h). § 87(2)(b)'s statements are summarized below.

On January 16, 2008 at approximately 6:20 PM, § 87(2)(b) was walking to a meeting for his job along with five young people in his program (GOLES) when he saw a commotion on the intersection of § 87(2)(b) and § 87(2)(b) in Manhattan. § 87(2)(b) and his kids stopped on the Northeast corner and saw a taxicab stopped on the southwest corner of the intersection. He was about 15 feet away. The cab driver was getting out of his vehicle. There was a woman with red hair standing on the passenger side by the back door.

Two police officers walked up to the cab driver. An officer, identified by the investigation as PO Keith Gallagher of the 9th Precinct, turned the driver around and pushed him against the cab. The cab driver protested and screamed that he didn't do anything. PO Gallagher said, "I don't want to hear your mouth." The cab driver continued protesting. PO Gallagher told him to "shut the fuck up" in a very aggressive tone. PO Gallagher slammed the driver onto the ground (**Allegation A**). PO Gallagher and his partner, identified by the investigation as PO Michael Schemmel of the 9th Precinct, put their knees on the driver's back (**Allegations A and B**). PO Gallagher's knee was on the lower part of the driver's back while his hands were on his shoulder. The cab driver screamed that he was in pain. PO Gallagher repeatedly said, "We don't want to hear it. Shut the fuck up." The driver was writhing on the ground, mostly moving his head. He had his hand against the ground to keep his head from touching it. PO Gallagher took out his baton and hit the driver on the back of the head in an overhand swing (**Allegation C**). PO Gallagher and PO Schemmel continued to scream at the driver to stop moving.

PO Gallagher and PO Schemmel handcuffed the driver and tried to pull him up. The driver fell down and his face hit the ground, possibly the curb. The officers pulled him up again and put him handcuffed against the taxi. The driver continued to say that he didn't do anything wrong. The officers continued to tell him to shut the fuck up.

PO Schemmel took the driver to the police car and PO Gallagher pushed him into the backseat. § 87(2)(b) did not see the driver resist in any way. He only reacted verbally to the officers. After the driver was placed in the patrol car, § 87(2)(b) saw a second police car arrive at the scene. Two officers, identified as Lt. Robert Cocoran and PO Chris Palmeri of the 9th Precinct, spoke to PO Gallagher, PO Schemmel, and the woman. § 87(2)(b) departed the scene.

§ 87(2)(b)

§ 87(2)(b) is a § 87(2)(b) dark skinned male who is § 87(2)(b) and weighs § 87(2)(b), with brown eyes and black hair. § 87(2)(b) reported his complaint to the CCRB call-processing-system on January 24, 2008 (encl. 2i). § 87(2)(b) was subsequently interviewed on January 28, 2008 at the CCRB (encl. 2j-p). His statements are summarized below.

On January 15, 2008, at approximately 6:05 PM, § 87(2)(b) had a heated dispute with his fare, § 87(2)(b) at § 87(2)(b) and § 87(2)(b) in Manhattan. The customer hit § 87(2)(b) on the back of the head and exited the vehicle. § 87(2)(b) ran after the customer demanding that she pay the fare. § 87(2)(b) grabbed her wrist to prevent her from leaving. In the process the customer dropped her phone, which was in her other hand, on the ground. The customer then said that she was going to call the police.

Fifteen minutes later, at about 6:20, § 87(2)(b) saw a marked patrol car pull up behind him. An unidentified man in the street told the officers that "the driver [of the cab] is angry at the lady." Two officers, identified by the investigation as PO Keith Gallagher and PO Michael Schemmel, exited their vehicle and approached. § 87(2)(b) attempted to speak to the officers, but one of them, whom § 87(2)(b) identified as PO Gallagher, yelled, "Don't come here, don't come here. Just go and stand by your car. Stand by your car and put your hands behind you. You're under arrest." PO Gallagher approached § 87(2)(b) while the other officer spoke to the customer. PO Gallagher told § 87(2)(b) to get on the ground. § 87(2)(b) said, "What have I done?" PO Gallagher grabbed § 87(2)(b) on the waist and threw him on the floor (**Allegation A**). § 87(2)(b)'s glasses fell off and broke as he was pushed to the floor. § 87(2)(b) said, "why don't you ask me what happened?" PO Gallagher replied, "Keep your mouth shut." PO Gallagher handcuffed § 87(2)(b) pulled him up and attempted to push him face first into the backseat of the cab. PO Gallagher accused § 87(2)(b) of kicking an officer. § 87(2)(b) denied kicking PO Gallagher. PO Gallagher hit § 87(2)(b) in the back-waist area with a baton (**Allegation C**). § 87(2)(b) stated that he saw the baton. § 87(2)(b) believed that PO Gallagher was using a wooden baton. PO Gallagher had the baton in his right hand. § 87(2)(b) stated that PO Gallagher hit him in a thrusting motion, hard enough for him to have back pains as of the day of the interview. PO Gallagher also put his hand around the back of § 87(2)(b)'s neck and held his face down against the seat. § 87(2)(b) did not recall if PO Schemmel participated in pushing him into the cab, as his face was down. § 87(2)(b) did not know if the other officer touched him. During this incident, cars were still going by in the remaining lanes. § 87(2)(b) denied doing anything to resist arrest. PO Gallagher kept § 87(2)(b)'s broken glasses, although § 87(2)(b) did not see him take the glasses. They are not on the voucher.

§ 87(2)(b) admitted to being angry and speaking in a raised voice during the incident. On a scale of 1 being a conversational volume and 5 being screaming, § 87(2)(b) was speaking at a 3. There were many people watching the incident, but § 87(2)(b) did not recall how many.

After § 87(2)(b) had been subdued, a supervisor arrived and asked § 87(2)(b) if he kicked PO Gallagher. § 87(2)(b) said he did not.

Results of Investigation

Civilian Witness Statements

§ 87(2)(b)

§ 87(2)(b) is a § 87(2)(b) white female of unknown height and weight. § 87(2)(b) was identified by the UF-61 complaint report as the female who called 911 on § 87(2)(b). § 87(2)(b) provided a phone statement to the CCRB on June 6, 2008 (encl. 2q). The investigation was unable to obtain an official statement from § 87(2)(b) because she missed her appointments on June 10, 2008 and July 1, 2008. § 87(2)(b) statement is summarized below.

On January 15, 2008, § 87(2)(b) entered a taxi on 3rd Avenue and 1st Street in Manhattan. § 87(2)(b) had a dispute with the driver about him driving too slowly. At § 87(2)(b) and § 87(2)(b) § 87(2)(b) attempted to exit the cab. As § 87(2)(b) was exiting the cab, with half her body out of the car, § 87(2)(b) stepped on the gas and caused § 87(2)(b) to fall. § 87(2)(b) said, "Give me my money give me my money." § 87(2)(b) said that she was going to call the police. When § 87(2)(b) put her cell phone to her ear, the driver smacked her phone and hit her face. § 87(2)(b) then grabbed her jacket and shook her. An

unidentified male approached the two, pulled § 87(2)(b) away and told § 87(2)(b) that he "couldn't hit her like that." § 87(2)(b) called 911.

The police officers arrived, and the individual who had removed § 87(2)(b) from § 87(2)(b) told them what happened. The individual said, "This guy's a psycho. I saw him hit her and grab her and try to run her down." The officers exited the vehicle. The cab driver exited his car. § 87(2)(b) had his hands in his pockets and was yelling. The officers told him to get back into the cab. They also instructed him to take his hands out of his pockets 5 times. The officers then grabbed § 87(2)(b)'s hands but § 87(2)(b) fought back. When asked how § 87(2)(b) fought back, § 87(2)(b) said that he kicked them, referring to another part of the incident. § 87(2)(b) first stated that the officers "threw" the driver to the floor. When asked to clarify, § 87(2)(b) corrected herself and said that the officers placed § 87(2)(b) on the ground "softly and gently." On the ground, § 87(2)(b) began kicking the officers and hitting them back. § 87(2)(b) also held his hands underneath his body so to resist being handcuffed. § 87(2)(b) kicked one of the officers in the knee and bruised him.

The officers put § 87(2)(b) into the back seat and closed the door. The driver then kicked the window and the door.

§ 87(2)(b)

§ 87(2)(b) is a male of unknown pedigree. § 87(2)(b) was a witness to the incident and provided his phone number to § 87(2)(b). § 87(2)(b) does not otherwise know § 87(2)(b). § 87(2)(b) provided the name "§ 87(2)(b)" for § 87(2)(b) but § 87(2)(b) subsequently informed the investigator of his real name. § 87(2)(b) provided a phone statement to the CCRB on July 11, 2008 (encl. 2r). The investigator called § 87(2)(b) twice on June 6, once on June 26, twice on July 7, and once on July 11, 2008. The investigator was able to schedule an appointment with § 87(2)(b) during the last call for July 14, 2008. § 87(2)(b) however, missed his appointment.

On January 15, 2008, § 87(2)(b) was walking towards the downtown M9 bus on § 87(2)(b) and § 87(2)(b) in Manhattan when he saw an individual, identified by the investigation as § 87(2)(b) walk fast towards the curb on the opposite corner of the intersection. § 87(2)(b) noticed a cab that was in a double parked position 3-5 feet from the corner. Two police officers ran towards § 87(2)(b). As the two officers walked towards him, § 87(2)(b) was moving away from the cab while trying to explain himself. § 87(2)(b) explained that § 87(2)(b) was trying to get out of the way of moving traffic.

The two officers, identified as PO Keith Gallagher and PO Michael Schemmel, then "jumped on" § 87(2)(b). § 87(2)(b) became scared and "curled up in a ball" on the ground and covered his head with his hands. § 87(2)(b) clarified that § 87(2)(b) crouched down and covered his head. PO Gallagher then hit § 87(2)(b) with his hands. PO Gallagher punched § 87(2)(b) multiple times on the back of his neck and head area. PO Schemmel hit § 87(2)(b) with the asp multiple times in the rib area and the shoulder. § 87(2)(b) saw PO Schemmel hit § 87(2)(b) approximately 6-8 times with the asp. As § 87(2)(b) was being hit, he fell to the ground. The officers continued to strike him as he was on the ground. The officers then handcuffed § 87(2)(b) and put him in the police car. They then went to talk to a white female, identified by the investigation as § 87(2)(b). § 87(2)(b) was watching from the opposite corner.

§ 87(2)(b)

§ 87(2)(b) was named by § 87(2)(b) as a witness to the incident. The undersigned left messages for § 87(2)(b) on June 6, June 26, September 8, September 22, and October 6, 2008. The undersigned sent letters to § 87(2)(b) on September 17 and September 22, 2008. On September 22, 2008, the investigator spoke to § 87(2)(b) and scheduled an appointment for September 25, 2008, which § 87(2)(b) missed. § 87(2)(b) has not since contacted the CCRB.

Officer Statements

PO Keith Gallagher

PO Keith Gallagher is a § 87(2)(b)-old white male who is § 87(2)(b) and weighs § 87(2)(b), with brown hair and blue eyes. PO Gallagher was interviewed at the CCRB on March 26, 2008 (encl. 3j-l). On January 15, 2008, PO Gallagher worked sector A patrol from 4:00 PM to 12:00 AM. He was assigned to a marked RMP with PO Schemmel.

Memo Book

PO Gallagher's memo book (encl. 3a-d) noted the following: "1812: 10-34 @ § 87(2)(b) and § 87(2)(b) – on back of 9B. 1836: 10-92C – 1 under @ § 87(2)(b). – highly combative and uncompliant perp. 1837: trans 1 male to 9th Pct. 9LT on scene. 1839: Request for ambulance @ 9th PCT – injured MOS – PO Schemmel #3779. § 87(2)(b); EMS 10-84 @ 9th PCT. 10-97 to § 87(2)(b) – PO Schemmel."

OLBS Report

The arrest report prepared by PO Gallagher (encl. 3e-g) contained the following narrative: "At t/p/o, defendant was told by A/O numerous times to get out of street to stop blocking vehicular traffic and refused. When A/O attempted to place handcuffs on defendant, defendant knowingly began throwing punches at officers and kicked an officer in the left knee, causing a hyper-extension to officer's knee, bruising, swelling, and pain. Defendant then placed his arms under his body when officers placed him on ground in an attempt not to be handcuffed." § 87(2)(b) was reported to have made the statement, "What the fuck do you want with me, I am no criminal."

UF-61 Complaint Report

The complaint report prepared by PO Gallagher (encl. 3h-i) contained the same narrative as in the arrest report, with the following addition: "9LT on scene."

CCRB Statement

On January 15, 2008 at approximately 6:12 PM, PO Gallagher received a call for a 10-34, assault in progress involving a yellow taxi. As PO Gallagher was approaching the scene, a passerby flagged the patrol car down and told the officers, "I think this guy's crazy, I think he might have weapon." The passerby was a white male, but PO Gallagher could not describe him in more detail. PO Gallagher said, "What makes you think he has a weapon?" The passerby said, "I don't know, this girl's phone is flying out of her hand, he's violent."

PO Gallagher observed the taxi stopped on the southwest corner of § 87(2)(b) and § 87(2)(b) Manhattan. The cab was parked next to the curb. PO Gallagher pulled his patrol car up behind the taxi, as if conducting a car stop. There were a large number of people in the area. PO Gallagher exited his vehicle and approached the taxi. The driver, § 87(2)(b) exited the vehicle and was "excited." § 87(2)(b) was saying things rapidly but PO Gallagher did not understand them because of § 87(2)(b)'s accent. When questioned about § 87(2)(b)'s exact actions and words, PO Gallagher replied that § 87(2)(b) was "just very excited" and was making PO Gallagher and PO Schemmel nervous. PO Gallagher did not recall what § 87(2)(b) was saying. PO Gallagher instructed § 87(2)(b) to put his hands on the back of the taxi. § 87(2)(b) didn't comply. § 87(2)(b) was standing a few feet from the car. PO Gallagher grabbed both of § 87(2)(b)'s shoulders and attempted to turn him around and put him on the car. PO Gallagher and § 87(2)(b) were facing each other when this happened. § 87(2)(b) then put his hands underneath PO Gallagher's arms so that the two were "wrapped up." The two wrestled and then went to the ground. PO Gallagher did not recall how exactly he fell on the ground. Neither did he recall exactly how he was "wrestling." PO Gallagher rolled on the ground with § 87(2)(b) for approximately 20-30 seconds. On the ground, PO Gallagher told PO Schemmel to handcuff § 87(2)(b). PO Schemmel attempted to take out his handcuffs while bending over the two individuals on the ground, when § 87(2)(b) kicked PO Schemmel's knee. PO Schemmel hyper-extended his knee and fell to the ground. PO Schemmel could walk after he was kicked, but he was limping. PO Gallagher did not recall if PO Schemmel assisted in arresting § 87(2)(b) after he was kicked.

PO Gallagher subdued § 87(2)(b) with handcuffs. After § 87(2)(b) was handcuffed, he calmed down. PO Gallagher stated that during the scuffle, he may have instructed § 87(2)(b) to stop resisting. PO Gallagher admitted that he might have told § 87(2)(b) to shut up. PO Gallagher denied, to his recollection, telling § 87(2)(b) to "shut the fuck up." PO Gallagher did not speak to § 87(2)(b) after he was handcuffed. PO Gallagher stated that § 87(2)(b) was wearing glasses during the incident, and that the glasses broke during the scuffle. PO Gallagher did not see the broken glasses, but stated that § 87(2)(b) was talking about the glasses. PO Gallagher did not have time to take the glasses to the precinct. A crowd had formed, and PO Gallagher was focused to getting § 87(2)(b) out of the area. People in the crowd were making comments about police brutality.

PO Gallagher stated that he did carry an asp. PO Gallagher stated that he did not recall if he deployed his asp, but stated that he “really didn’t think” he did. PO Gallagher stated that since § 87(2)(b) was an older man, he believed he could take § 87(2)(b) down quickly. § 87(2)(b) put up a big fight, and PO Gallagher was concerned that he would grab PO Gallagher’s gun. Because of the intensity of the struggle, PO Gallagher highly doubted he could have reached for his asp. PO Gallagher stated that in a similar situation, he would have deployed his asp if he could have reached it. PO Gallagher denied hitting § 87(2)(b) with the asp after he was handcuffed. PO Gallagher put § 87(2)(b) into the patrol car without resistance. § 87(2)(b) may have been laying down in the patrol car.

PO Gallagher then spoke with the woman who called 911. PO Gallagher learned that the woman, § 87(2)(b), had a dispute with § 87(2)(b) about the price of a cab ride. § 87(2)(b) took her phone out to call 311 and § 87(2)(b) smacked the phone out of her hand. When asked about the disposition of the 10-34, PO Gallagher stated that what § 87(2)(b) allegedly did would have constituted harassment. PO Gallagher, however, did not charge § 87(2)(b) with harassment.

About 8-10 minutes later, Lieutenant Corcoran and PO Torres arrived at the scene. Lt. Corcoran asked PO Gallagher what happened. PO Gallagher told him and then transported § 87(2)(b) to the precinct. PO Schemmel was treated at the precinct.

The investigator showed PO Gallagher the UF-61 complaint report for § 87(2)(b) and asked PO Gallagher to explain why he wrote in the narrative that § 87(2)(b) was blocking vehicular traffic. PO Gallagher acknowledged that he prepared the complaint report. PO Gallagher stated that § 87(2)(b) was blocking vehicular traffic when he was wrestling on the ground with PO Gallagher. When asked why he included the discussion of blocking vehicular traffic on the arrest report, PO Gallagher said, “Because he was blocking vehicular traffic.” The investigator then asked about the circumstances under which, as mentioned in the complaint narrative, PO Gallagher instructed § 87(2)(b) to get out of the street so to stop blocking vehicular traffic. PO Gallagher responded that although the taxi was stopped next to the curb, it was still blocking traffic. PO Gallagher then reiterated that both he and § 87(2)(b) were blocking vehicular traffic by rolling on the ground without answering the question. Later in the interview, PO Gallagher stated that he instructed § 87(2)(b) to move out of the middle of the street. § 87(2)(b) was charged with the disorderly conduct subsection on blocking vehicular traffic.

PO Michael Schemmel

PO Michael Schemmel is a § 87(2)(b)-old white male who is § 87(2)(b), with black hair and hazel eyes. PO Schemmel was interviewed at the CCRB on April 29, 2008 (encl. 3r-s). On January 15, 2008, PO Schemmel worked from 3:00 PM to 11:30 PM. He was assigned to sector A/C with PO Gallagher, in uniform, in marked RMP 2078.

Memo Book

PO Schemmel did not have any memobook entries regarding the incident due to injury (encl. 3m-v).

Line Of Duty Report

§ 87(2)(b)

CCRB Statement

On the above date at approximately 6:20 PM, PO Schemmel received a radio run about an assault in progress at § 87(2)(b) and § 87(2)(b). When PO Schemmel and PO Gallagher arrived at the scene, PO Schemmel observed a woman crying on the sidewalk. PO Schemmel also observed a cab driver sitting inside his cab. The taxi was stopped eastbound on § 87(2)(b) just west of the intersection with § 87(2)(b) on the south side of the street, in the middle of the street blocking traffic. The officers pulled their vehicle directly behind the driver. When the officers stopped the car, the driver, § 87(2)(b), exited the cab and came towards the officers. § 87(2)(b) was “yelling and screaming, ranting and raving.” PO Schemmel clarified that § 87(2)(b) was using profanity and screaming about the fare. PO Schemmel could not fully understand § 87(2)(b) due to a “strong middle eastern accent.” PO Gallagher instructed § 87(2)(b) to, “Lower your voice. Get back in the car. Calm down.” PO Gallagher did not say “shut the fuck up.” § 87(2)(b)

§ 87(2)(b) disregarded the verbal commands and continued to walk towards the officers in an aggressive manner. PO Gallagher instructed § 87(2)(b) to “get on the car.” § 87(2)(b) disregarded and continued approaching the officers. His hands were up in the air and he was very agitated. PO Gallagher instructed § 87(2)(b) to put his hands where they could be seen.

The officers made contact with § 87(2)(b) near the back quarter panel of the taxicab. The officers then pushed § 87(2)(b) against the car and placed his hands on the trunk of the car, where they were visible. PO Gallagher made the first contact by grabbing § 87(2)(b)'s wrist, and PO Schemmel grabbed his other wrist. Under questioning, PO Schemmel stated that the officers only *attempted* to place § 87(2)(b)'s wrists on the car, because § 87(2)(b) began throwing punches. § 87(2)(b)'s wrists never reached the vehicle. PO Schemmel had not touched § 87(2)(b)'s wrist when § 87(2)(b) began swinging his hands wildly. PO Schemmel stated that PO Gallagher may have been able to grab § 87(2)(b)'s hand, but PO Schemmel did not see. § 87(2)(b) was facing the vehicle. When asked how the officers were able to get § 87(2)(b) to face the vehicle, PO Schemmel stated that the officers' physical proximity forced § 87(2)(b) to turn towards the vehicle. § 87(2)(b) then began throwing punches at both officers. PO Schemmel was hit somewhere on the body, but he did not recall where. PO Schemmel did not recall how many times he was hit but it was more than once. PO Schemmel described § 87(2)(b)'s actions as a wild flailing of the arms. PO Schemmel did not recall if § 87(2)(b) used closed fists.

Both officers grabbed § 87(2)(b) by the forearm, spun him around, and brought him to the ground. When § 87(2)(b) was falling to the ground, he kicked backwards and struck PO Schemmel's left knee, causing a hyperextension of the knee. It took about 10 seconds to bring § 87(2)(b) to the ground. PO Gallagher was behind § 87(2)(b) on the right hand side. The kick brought § 87(2)(b) off balance and to the ground. PO Schemmel fell on top of § 87(2)(b). PO Schemmel attempted to grab § 87(2)(b)'s hands to put them into handcuffs. § 87(2)(b) brought his hands down underneath his body. PO Schemmel participated actively in the process. It took approximately 30 seconds to pull § 87(2)(b)'s arms back and put him in handcuffs. The officers were unable to put their knees on § 87(2)(b)'s back because PO Schemmel was injured, and because his face was near § 87(2)(b)'s shoulder blade. § 87(2)(b) was handcuffed and placed in the RMP. The officers did not place § 87(2)(b) in the taxicab. PO Schemmel assisted in bringing § 87(2)(b) to the taxicab, despite his injury. The officers pushed § 87(2)(b) into the RMP bottom first, and he fell back. The officers then got § 87(2)(b)'s legs into the car safely, and closed the door. After § 87(2)(b) was put into the car, an individual approached the officers and told them that he disapproved of the arrest. The individual called the officers “assholes” and stated he would be in contact with Det. Hernandez, the community liaison. The street was very crowded at this time.

§ 87(2)(b) was still screaming until the supervisors arrived and he calmed down. The supervisory officer was Lt. Robert Cocoran and was accompanied by PO Torres. PO Gallagher did not have his asp deployed during the incident, since there was no opportunity to get it out. At no point did PO Gallagher have his asp deployed. PO Gallagher did not hit § 87(2)(b) with the asp after he was in the RMP. Throughout the incident, both officers instructed § 87(2)(b) to calm down. PO Gallagher got a statement from the woman who called 911. The incident turned out to be a dispute between a cab driver and a fare. A UF-61 was written, but otherwise there was no police action taken in regards to the original call. There were no civilians who spoke with the officers prior to the incident. PO Schemmel was taken to the hospital from the 9th Precinct, § 87(2)(a) PBH §18(6).

PO Rene Sola

PO Rene Sola is a § 87(2)(b)-old Hispanic male who is § 87(2)(b), with black hair and brown eyes. PO Sola was interviewed at the CCRB on December 16, 2008 (encl. 3aa-bb). On January 15, 2008, PO Sola worked from 3:00 PM to 11:35 PM in marked RMP 2017. PO Sola was assigned to sector B patrol with PO Palmeri. PO Sola has no memo book entries regarding the incident. PO Sola did not have any memo book entries concerning the incident (encl. 3y-z).

CCRB Statement

PO Sola did not recall what happened on January 15, 2008, at 6:20 PM. The investigator presented a Sprint print-out concerning the incident to PO Sola. PO Sola acknowledged that he was the 9B unit on the Sprint, but the Sprint did not rouse PO Sola's recollection of the incident. PO Sola did not recall if he saw PO Gallagher on the date in question. The investigator presented a photograph of § 87(2)(b) to PO Sola. PO Sola did not recognize the individual in the photo. The investigator then summarized the incident for PO Sola, but PO Sola did not recall the incident.

PO Chris Palmeri

PO Chris Palmeri is a § 87(2)(b)-old white male who is § 87(2)(b) and weighs § 87(2)(b), with brown hair and brown eyes. PO Palmeri was interviewed at the CCRB on December 22, 2008 (encl. 3w-x). On January 15, 2008, PO Palmeri worked from 3:00 PM to 11:30 PM. PO Palmeri was in uniform and assigned to RMP 2017. PO Palmeri did not recall who he worked with.

Memo Book

PO Palmeri's memo book states the following: "1810: 1034 [REDACTED] § 87(2)(b) 1825: (9E handle, 1 under)" (encl. 3t-v).

CCRB Statement

PO Palmeri did not recall what happened on January 15, 2008 at 6:20 PM in the vicinity of § 87(2)(b) and § 87(2)(b) in Manhattan. PO Palmeri stated that did not recall the incident that was noted on his memo book. The investigator showed PO Palmeri a Sprint of the incident, but the sprint did not cause PO Palmeri to remember the incident. The investigator showed PO Palmeri a picture of § 87(2)(b) PO Palmeri did not recognize the individual in the picture. PO Palmeri did not specifically recall seeing PO Gallagher on the incident date. PO Palmeri did not recall if he witnessed the incident.

Officers Not Interviewed

Lt. Robert Cocoran and Jessica Torres arrived at the incident after § 87(2)(b) had been handcuffed and placed inside the police vehicle. § 87(2)(g)

Medical Records

§ 87(2)(b)

Pre-Arraignment Screening Form

§ 87(2)(b) s pre-arraignment screening form indicates that he did not claim any injuries (encl. 4m).

§ 87(2)(a) PBH §18(6)

[REDACTED]

[illegible]

Police Department Documents

911 Tape

§ 87(2)(b) called 911 to report that a cab driver assaulted her at § 87(2)(b) and § 87(2)(b) (encl. 5a). She stated that as she was trying to call police, the driver knocked the phone out of her hand. § 87(2)(b) stated that there were no weapons.

There is clearly audible yelling in the background. § 87(2)(g)

SPRINT/Communications Documents

The SPRINT and communications records regarding the incident (encl. 5a-d) are summarized below. At 6:04 PM, the operator reported a woman who was assaulted by a taxi driver on § 87(2)(b) and § 87(2)(b). At 6:15 PM, sector 9B responded and stated it had arrived at location. At 6:22, sector 9A called and asked for a sergeant to respond to § 87(2)(b). The 9 Lieutenant responded and asked for an address. At 6:28, 9B stated that they were leaving the scene and that 9A would handle the situation. At 6:37, 9A called in a “1 under” at the location. At 6:39 PM, EMS was requested to the 9th precinct for a bruise to left leg of a member of service. EMS arrived at the 9th Precinct at § 87(2)(b). At 9:13, 9A called to verify the arrest.

Prisoner Holding Pen Roster

The prisoner holding pen roster for January 15, 2008 states that § 87(2)(b) was placed in the cell at 7:30 PM and taken to central booking at 10:10 PM (encl. 6a).

Property Voucher

Property voucher number § 87(2)(b) (encl. 6b) states that 436 dollars in cash were vouchered from § 87(2)(b).

9th Precinct Roll Call

The tour 1 roll call for January 15, 2008 (encl. 6c-i) states that PO Gallagher and PO Schemmel were assigned to Sector A patrol in vehicle 1484. PO Palmeri and PO Sola were assigned to Sector B in vehicle 2017. Lt. Corcoran was platoon commander and PO Torres was the lieutenant’s operator.

Command Log

The 9th Precinct command log for January 15, 2008 (encl. 6j) states that PO Schemmel was transported to § 87(2)(b) at § 87(2)(b). The log does not include the page where § 87(2)(b)’s arrest was logged, however.

Disposition of Criminal Case

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Officer CCRB Histories

PO Gallagher and PO Schemmel have no substantiated CCRB allegations on record that have led to the imposition of discipline (encl. 1a-b).

Conclusions and Recommendations

Officer Identification

§ 87(2)(b) identified his arresting officer as “PO Gallagher.” PO Keith Gallagher of the 9th Precinct acknowledged being at the scene of incident. The 9th Precinct roll call identified PO Michael Schemmel of the 9th Precinct as PO Gallagher’s partner officer. § 87(2)(b) described PO Gallagher as a 6’0” tall skinny white male. § 87(2)(b) described PO Schemmel as a shorter, stocky white male. The

descriptions match the officers' actual pedigree sufficiently to distinguish the two officers. § 87(2)(b) alleged that PO Gallagher threw him to the ground and hit him with an asp. § 87(2)(g) Although § 87(2)(b) did not recall PO Schemmel participated in his arrest, PO Schemmel admitted to employing physical force in order to arrest § 87(2)(b) § 87(2)(g)

The investigation identified from Sprint records and roll call that PO Rene Sola and PO Chris Palmeri of the 9th Precinct also responded to the scene. The officers are listed as witnesses. Lt. Robert Corcoran and PO Jessica Torres were also identified by Sprint and roll call as witnesses to the incident.

Undisputed Facts

The following facts are undisputed: § 87(2)(b) called 911 in order to report that § 87(2)(b) had attacked her. PO Gallagher and PO Schemmel responded to the scene and were approached by an unidentified individual who made a comment to PO Gallagher about § 87(2)(b)'s angered emotional state. § 87(2)(b) attempted to explain the situation. § 87(2)(b) was speaking very loudly. § 87(2)(b) was speaking loudly. The officers attempted to place § 87(2)(b) against the taxi cab. PO Gallagher attempted to handcuff § 87(2)(b) and a struggle ensued in which § 87(2)(b) was pushed to the ground before PO Gallagher and PO Schemmel placed him in handcuffs

Disputed Facts

§ 87(2)(g)

Assessment of Evidence

§ 87(2)(g) § 87(2)(b) stated that PO Gallagher repeatedly cursed at § 87(2)(b) saying things to the effect of "shut the fuck up" in response to § 87(2)(b)'s protests. § 87(2)(b) § 87(2)(g) did not allege that PO Gallagher cursed at him. Similarly, while § 87(2)(b) alleged that PO Gallagher struck him in the lower back with his asp in a "poking" motion, § 87(2)(b) stated that PO Gallagher struck him in the back of the head with an overhand swing. § 87(2)(g)

§ 87(2)(b) an independent witness, who stated that § 87(2)(b) was struck several times in the rib and shoulder area with an asp. § 87(2)(b) however, also alleged that § 87(2)(b) was struck with an asp 6-8 times, something which none of the other witnesses allege. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) In his arrest report, PO Gallagher stated that § 87(2)(b) had been blocking vehicular traffic and was repeatedly ordered to get out of the street. In his CCRB statement, PO Gallagher did not mention that § 87(2)(b) blocked vehicular traffic until questioned about his arrest report, to which he stated that § 87(2)(b) was blocking vehicular traffic when he and PO Gallagher were wrestling with each other on the ground. § 87(2)(g)

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(b) alleged that after he was handcuffed, PO Gallagher placed him in the backseat of his taxi and struck him in the back with an asp. § 87(2)(g)

[REDACTED]

Allegations Not Pleaded

§ 87(2)(b) alleged that PO Gallagher said, “Shut the fuck up” to § 87(2)(b) § 87(2)(g). Additionally, § 87(2)(b) alleged that as he was thrown to the ground, his glasses fell off and broke. § 87(2)(g)

Allegation A: PO Keith Gallagher used physical force against § 87(2)(b)

Allegation B: PO Michael Schemmel used physical force against § 87(2)(b)

§ 87(2)(g)
[REDACTED]

It is recommended that **Allegations A and B** be closed **exonerated**.

Allegation C: PO Keith Gallagher struck § 87(2)(b) with an asp

§ 87(2)(g)
[REDACTED]
it is recommended that **Allegation C** be closed **unsubstantiated**.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: